pipchell.com

Terms of Service · Privacy Policy · Cookie Notice Acceptable Use · Disclaimer · DMCA & Copyright

legal@pipchell.com

This document comprises highly structured legal policies for the Pip Chell website, including Terms of Service (Part A), Privacy Policy and Cookie Notice (Part B), and DMCA & Copyright Notice (Part C).

Effective 18 April 2026 · England and Wales

OVERVIEW

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PART A

Terms of Service

1. DEFINITIONS

In these Terms the following words have the following meanings. **"Website"** means pipchell.com and all subpages, subdomains, and associated services operated by the Owner, including pipchell.com/brandhub, pipchell.com/me, pipchell.com/support, undertracks.co.uk, and the RPCgroup services at rpcgroup.xyz. **"Owner"** means Rowan Chell, trading as “Pip Chell”, an individual based in England, and the sole operator of the Website. **"User"** means any individual who accesses or uses the Website. **"Content"** means all text, images, code, graphic design assets, project files, logos, colour palettes, and any other material published on or accessible through the Website. **"Linked Services"** means third-party or separately operated platforms linked from the Website, including forum.rpcgroup.xyz, bookings.rpcgroup.xyz, rpcgroup.xyz, GitHub, and Redbubble. **"Terms"** means these Terms of Service as amended from time to time.

2. ACCEPTANCE OF TERMS

By accessing or using the Website, the User agrees to be bound by these Terms in their entirety. If the User does not agree with any provision, they must immediately cease using the Website. These Terms constitute a legally binding agreement between the User and the Owner. Where the User accesses the Website on behalf of a third party, they warrant that they have authority to bind that third party to these Terms.

3. DESCRIPTION OF THE WEBSITE

The Website is a personal portfolio and project-hosting platform operated by Rowan Chell. It showcases the Owner's work in graphic design — including commercial projects for clients such as Eco Washing Launderette and work produced via Yell.com and Redbubble — as well as software development and computer hardware. The Website also hosts or links to related projects including Undertracks (undertracks.co.uk), a household website designed by the owner, and the RPC group of services (rpcgroup.xyz). The Website is provided free of charge for informational and portfolio purposes only. No goods or services are sold directly through the Website.

4. INTELLECTUAL PROPERTY RIGHTS

Unless expressly stated otherwise, all Content on the Website is the exclusive intellectual property of Rowan Chell and is protected by the Copyright, Designs and Patents Act 1988 and applicable international copyright treaties. This includes without limitation all Brand Hub assets (pipchell.com/brandhub), the Undertracks website, and all original code created by the Owner. No Content may be reproduced, distributed, modified, adapted, publicly displayed, transmitted, or used to create derivative works without the prior written consent of the owner. Any unauthorised use may give rise to a claim for damages and/or constitute a criminal offence.

Certain software projects accessible via github.com/pipchell may be published under open-source licences such as the MIT Licence or Apache Licence 2.0. Use of such projects is governed exclusively by the terms of the applicable open-source licence as specified in the relevant repository, and nothing in these Terms shall

restrict rights granted under such licences. The Website may also reference third-party trademarks or intellectual property for descriptive purposes only; all such rights remain the property of their respective owners.

5. LICENCE TO USE THE WEBSITE

Subject to these Terms, the Owner grants the User a limited, non-exclusive, non-transferable, revocable licence to access and use the Website solely for personal, non-commercial purposes. This licence does not include any right to sublicence or assign rights to any third party; use data mining, robots, scraping, or similar extraction methods; copy or replicate the Website's structure, design, or functionality; or use the Website in any manner that could damage, disable, or impair its operation. The owner reserves the right to revoke this licence at any time without notice.

6. ACCEPTABLE USE POLICY

The User agrees not to use the Website for any activity that is unlawful under the laws of England and Wales or any applicable jurisdiction, and specifically agrees not to attempt to gain unauthorised access to any part of the Website, its servers, or associated systems (including the owner's Home Assistant instance at rpcgroup.xyz); introduce or transmit any virus, malware, or other malicious code; conduct any denial-of-service attack or place an unreasonable load on the Website's infrastructure through automated tools; harvest or store personal data relating to other users without their informed consent; publish or promote any defamatory, obscene, hateful, or discriminatory content; impersonate the owner or any other individual; infringe the intellectual property rights of the owner or any third party; or engage in any activity designed to circumvent DMCA protections or the owner's copyright notices. Breach of this Policy may result in legal action and/or referral to law enforcement.

7. THIRD-PARTY LINKS AND SERVICES

The Website contains hyperlinks to third-party websites and services including but not limited to forum.rpcgroup.xyz, bookings.rpcgroup.xyz, rpcgroup.xyz, github.com/pipchell, and various external platforms. These links are provided for convenience only. The owner has no control over the content, privacy practices, or availability of third-party websites and accepts no responsibility or liability for them. The inclusion of any link does not imply endorsement of the linked website or its operator. Users access third-party sites entirely at their own risk and subject to the terms and privacy policies of those sites.

8. AVAILABILITY AND MODIFICATIONS

The Owner shall use reasonable endeavours to ensure the Website is available at all times but does not guarantee uninterrupted or error-free access. The Website may be unavailable from time to time due to maintenance, updates, or circumstances beyond the owner's reasonable control, including internet service provider failures, hosting platform outages, or force majeure events. The owner reserves the right to modify, suspend, or permanently discontinue the Website or any part of it at any time without notice and shall not be liable for any such modification, suspension, or discontinuation.

9. DISCLAIMER OF WARRANTIES

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, THE WEBSITE AND ALL CONTENT ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS WITHOUT ANY WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. The Owner does not warrant that the Website will meet the User's requirements, will be uninterrupted, timely, secure, or error-free, or that any results obtained from use of the Website will be accurate or reliable. Nothing in this clause shall limit any warranty that cannot be excluded under the Consumer Rights Act 2015 or other applicable mandatory consumer protection legislation.

10. LIMITATION OF LIABILITY

To the fullest extent permitted by law, the owner shall not be liable to the User for any indirect, incidental, special, exemplary, consequential, or punitive damages, including loss of profits, loss of data, loss of goodwill, service interruption, computer damage, or system failure, arising out of or in connection with the use of or inability to use the Website, even if the owner has been advised of the possibility of such damages. The owner's total aggregate liability to any User in connection with these Terms shall not exceed £100 (one hundred pounds sterling) in any twelve-month period. To the fullest extent permitted by applicable law, nothing in these Terms excludes or limits liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability that cannot be excluded or limited by English law.

11. INDEMNIFICATION

The User agrees to indemnify, defend, and hold harmless Rowan Chell, his affiliates and successors from and against any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable legal fees) arising out of or in connection with the User's use of or access to the Website, the User's violation of these Terms, or the User's violation of any third-party rights including any intellectual property or privacy rights.

12. GOVERNING LAW AND JURISDICTION

These Terms and any dispute or claim arising out of or in connection with them or their subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of England and Wales. The User irrevocably agrees that the courts of England and Wales shall have exclusive jurisdiction to settle any such dispute or claim.

13. SEVERABILITY

If any provision of these Terms is found by a court of competent jurisdiction to be invalid, unlawful, or unenforceable, that provision shall be severed from the remaining Terms, which shall continue in full force and effect.

14. WAIVER

No failure or delay by the owner in exercising any right or remedy provided under these Terms or by law shall constitute a waiver of that or any other right or remedy, nor shall it preclude or restrict the further exercise of that or any other right or remedy.

15. ENTIRE AGREEMENT

These Terms, together with the Privacy Policy and Cookie Notice and the DMCA and Copyright Notice set out in Parts B and C respectively, constitute the entire agreement between the User and the owner relating to the use of the Website and supersede all prior agreements, representations, and understandings.

16. AMENDMENTS

The Owner reserves the right to amend these Terms at any time. Amended Terms will be posted on the Website with an updated effective date. Continued use of the Website following the posting of amended Terms constitutes the User's acceptance of those amendments. It is the User's responsibility to review these Terms periodically.

17. CONTACT INFORMATION

Any queries regarding these Terms should be directed to Rowan Chell by email at legal@pipchell.com or via the contact page at pipchell.com/me. The owner will endeavour to respond within a reasonable time.

PART B

Privacy Policy & Cookie Notice

1. INTRODUCTION AND DATA CONTROLLER

This Privacy Policy and Cookie Notice describes how Rowan Chell ("Owner", "we", "us") collects, uses, and protects information in connection with the operation of pipchell.com and its associated subdomains and services. The Owner is the data controller for the purposes of the UK General Data Protection Regulation ("UK GDPR") and the Data Protection Act 2018 ("DPA 2018"). The Owner is committed to compliance with all applicable data protection legislation.

2. SCOPE OF THIS POLICY

This Policy applies to all personal data processed in connection with visits to pipchell.com, pipchell.com/me, pipchell.com/brandhub, pipchell.com/support, pipchell.com/stuff/bins, undertracks.co.uk, and any other subpages controlled by the Owner. It does not apply to RPCgroup services (forum.rpcgroup.xyz, bookings.rpcgroup.xyz, rpcgroup.xyz etc.), which are separately operated and governed by their own privacy policies.

3. INFORMATION WE COLLECT

The Website does not operate user accounts, registration forms, payment systems, or newsletter sign-ups, and the Owner does not collect personal data that Users actively submit (such as names, email addresses, or form data). When a User visits the Website, Google Analytics automatically collects certain technical and behavioural data including: anonymised IP address (truncated by Google prior to storage, such that no full IP is ever retained); browser type, version, and language settings; device type and operating system; pages visited, including URLs, page titles, and time spent; navigation path through the Website; referring URL; and approximate geographic location at country or city level derived from the anonymised IP. The Website is hosted and delivered using third-party infrastructure and content delivery services. These providers may process limited technical data such as IP addresses and request metadata as part of normal website operation.

4. LAWFUL BASIS FOR PROCESSING

The Owner processes analytics data on the lawful basis of consent pursuant to Article 6(1)(a) UK GDPR. Consent is obtained via a cookie consent mechanism prior to any analytics cookies being set. Consent is freely given, specific, informed, and unambiguous, and the User may withdraw it at any time without detriment (see Section 9).

5. GOOGLE ANALYTICS

The Website uses Google Analytics 4, a web analytics service provided by Google LLC, 1600 Amphitheatre Parkway, Mountain View, CA 94043, USA. Google Analytics uses cookies and similar tracking technologies to collect and analyse information about how Users interact with the Website. This enables the Owner to understand aggregate patterns of use — for example which projects receive the most engagement, how Users navigate between the personal site and linked pages such as the Brand Hub and Undertracks, and from which geographic regions visitors originate.

The Owner has enabled IP anonymisation, meaning IP addresses are truncated within EU/UK territory before transmission to Google's servers and Google never receives a full IP address. The Owner has also disabled data sharing with Google products and services, advertising features, and benchmarking. Google acts as a data processor on the Owner's behalf; its processing is governed by Google's Data Processing Terms. Google's privacy policy is available at policies.google.com/privacy. The Google Analytics Opt-out Browser Add-on is available at tools.google.com/dlpage/gaoptout.

6. COOKIES

The Website uses cookies in accordance with the Privacy and Electronic Communications Regulations 2003 (PECR) and the UK GDPR, and only sets non-essential cookies (including analytics cookies) after the User has provided explicit consent via a cookie consent mechanism. The **_ga** cookie (Google Analytics, 2 years) assigns a unique client ID to distinguish users across sessions. The **_ga_<ID>** cookie (Google Analytics, 2 years) stores and maintains session state for Google Analytics 4. The **_gid** cookie (Google Analytics, 24 hours) assigns a unique ID for a single day to distinguish users. The **_gat** cookie (Google Analytics, 1 minute) throttles the request rate to Google's servers. The Owner does not use advertising cookies, tracking pixels, social media cookies, or any cookies for the purposes of behavioural advertising or cross-site tracking.

7. DATA RETENTION

Analytics data collected via Google Analytics is subject to a retention period of 26 months from the date of collection, after which it is automatically and permanently deleted by Google. The Owner does not maintain any separate database of User personal data, so no additional retention period applies to data held by the Owner directly.

8. INTERNATIONAL TRANSFERS

Google Analytics may transfer personal data to the United States and other countries outside the United Kingdom. Such transfers are conducted by Google in accordance with the UK International Data Transfer Agreement (IDTA) and/or UK Addendum to the EU Standard Contractual Clauses, both approved by the ICO under section 119A of the DPA 2018, which provide appropriate safeguards for the protection of personal data.

9. YOUR RIGHTS UNDER UK GDPR

Subject to applicable law, Users have the right of access (Article 15) to obtain confirmation of whether personal data is being processed and to receive a copy; the right to rectification (Article 16) of inaccurate or incomplete data; the right to erasure (Article 17) where there is no compelling reason for continued processing; the right to restriction (Article 18) of processing in certain circumstances; the right to object (Article 21) to processing based on legitimate interests; the right to data portability (Article 20) to receive data in a structured, machine-readable format; and the right to withdraw consent at any time without affecting the lawfulness of prior processing. Requests should be sent to legal@pipchell.com and will be responded to within one calendar month in accordance with Article 12 UK GDPR. Users also have the right to lodge a complaint with the ICO at ico.org.uk, or by post to: ICO, Wycliffe House, Water Lane, Wilmslow, Cheshire, SK9 5AF.

10. CHILDREN'S PRIVACY

The Website is not directed at children under the age of 13 (or the applicable age of digital consent in their jurisdiction) and the Owner does not knowingly collect personal data from children. If the Owner becomes aware that personal data has been collected from a child under 13 without verifiable parental consent, steps will be taken to delete that data promptly. Parents or guardians who believe their child has provided personal data to the Owner should contact legal@pipchell.com.

11. SECURITY

The Owner implements reasonable technical and organisational measures to protect personal data against unauthorised access, accidental loss, destruction, or alteration. The Website is registered with DMCA.com for content protection monitoring (Badge ID: 36962642-068d-489a-a95a-5c2a13ead19e). However, the transmission of information over the internet is inherently insecure, and the Owner cannot guarantee the absolute security of data transmitted to the Website.

12. CHANGES TO THIS POLICY

The Owner reserves the right to update or modify this Policy at any time. Material changes will be reflected by an updated effective date at the top of this document. Continued use of the Website following any amendment constitutes acceptance of the revised Policy.

13. CONTACT AND COMPLAINTS

For all privacy-related enquiries, requests, or complaints, please contact Rowan Chell by email at legal@pipchell.com or via pipchell.com/me. The Owner will endeavour to acknowledge all enquiries within five working days and to respond substantively within one calendar month.

PART C

DMCA & Copyright Notice

1. COPYRIGHT OWNERSHIP

All original content published on pipchell.com and its associated subdomains is © Rowan Chell 2026. All rights reserved. This includes without limitation all graphic design work (including the pipchell.com brand identity, Brand Hub assets, the Undertracks visual identity, and commercial design work produced for third-party clients); all original HTML, CSS, JavaScript, and Python source code written by the Owner; all written content including project descriptions and documentation; all photographs, screenshots, and visual media created or commissioned by the Owner; and the overall structure, layout, and design of the Website. The Website is registered with DMCA.com for content protection monitoring (Badge ID: 36962642-068d-489a-a95a-5c2a13ead19e). Unauthorised reproduction, distribution, or commercial exploitation of any Content may constitute copyright infringement under the Copyright, Designs and Patents Act 1988 and/or the Digital Millennium Copyright Act (17 U.S.C. § 512) where applicable.

2. DMCA NOTICE AND TAKEDOWN PROCEDURE

If you believe in good faith that any Content on the Website infringes your copyright, you may submit a written notification of claimed infringement to legal@pipchell.com. To be effective under the DMCA, your notification must include: a physical or electronic signature of a person authorised to act on behalf of the copyright owner; identification of the copyrighted work claimed to have been infringed; identification of the material on the Website that is claimed to be infringing, with sufficient detail (including URL(s)) to enable the Owner to locate it; your name, address, telephone number, and email address; a statement of good-faith belief that the use is not authorised by the copyright owner, its agent, or the law; and a statement under penalty of perjury that the information in the notification is accurate and that you are authorised to act on the copyright owner's behalf. Upon receipt of a valid DMCA notice, the Owner will act expeditiously to remove or disable access to the allegedly infringing material.

3. COUNTER-NOTIFICATION

If material you posted has been removed following a DMCA notice and you believe the removal was a result of mistake or misidentification, you may submit a counter-notification to legal@pipchell.com. A valid counter-notification must include your physical or electronic signature; identification of the material that was removed and the location where it appeared before removal; a statement under penalty of perjury that you have a good-faith belief that the material was removed as a result of mistake or misidentification; and your name, address, telephone number, email address, and a statement consenting to the jurisdiction of the courts of England and Wales, or where applicable, a competent court in the United States for DMCA-related matters . Upon receipt of a valid counter-notification, the Owner may, at its discretion, restore the removed material within ten to fourteen business days unless the original complainant first provides notice of legal action to prevent restoration.

4. REPEAT INFRINGER POLICY

In accordance with the DMCA and other applicable law, the Owner maintains a policy of terminating access, in appropriate circumstances, for users or parties who are deemed to be repeat infringers of the Owner's or any third party's intellectual property. The Owner also reserves the right to take any other appropriate legal action, including civil or criminal proceedings, against repeat infringers.

5. UK COPYRIGHT LAW

Nothing in this section limits or replaces rights under the Copyright, Designs and Patents Act 1988. Where applicable, copyright claims may also be submitted and handled in accordance with UK law. References to the DMCA apply primarily to claims originating from or involving the United States.

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